

Whitman v. American Trucking Associations, Inc.

Citation

Whitman v. American Trucking Associations, Inc., 531 U.S. 457 (2001). Supreme Court of the United States, argued November 7, 2000, decided February 27, 2001. The Court decided the EPA's petition, No. 99-1257, together with the challengers' cross-petition, No. 99-1426. Justice Scalia wrote the principal opinion. Parts I and IV were unanimous. All Justices except Justice Breyer joined Part II, addressing costs; all except Justices Stevens and Souter joined Part III, addressing nondelegation. Justice Thomas concurred separately. Justice Stevens, joined by Justice Souter, and Justice Breyer each concurred in part and in the judgment. The judgment was unanimous, although the Justices differed over parts of the reasoning. [Full judicial opinion, including the separate opinions.](#)

The case addresses four distinct questions: whether the Clean Air Act permits the EPA to consider implementation costs when setting national ambient air quality standards; whether Congress supplied adequate standards for that delegation; whether the EPA's interpretation of the ozone implementation provisions was reviewable; and whether that interpretation was permissible. References below use the published U.S. Reports pagination.

Parties

Christine Todd Whitman, Administrator of the Environmental Protection Agency, and the EPA represented the federal government. The challenged standards had been issued in 1997, before Whitman became Administrator; her name appears because she held the office when the Supreme Court decided the case. The government sought reversal of the Court of Appeals' nondelegation ruling and defended its interpretation of the provisions governing implementation of the revised ozone standard. 531 U.S. at 462-64.

American Trucking Associations and other private companies and organizations, together with Michigan, Ohio, and West Virginia, challenged the standards. They argued, among other things, that the EPA's interpretation gave it excessive discretion and that the statute should permit consideration of the economic costs of compliance. Their cross-petition sought review of the lower court's rejection of the cost argument. The positions of these challengers should be distinguished from those of other governmental and organizational participants supporting the EPA. *Id.* at 462-64.

Material Facts

The Clean Air Act establishes a sequence of national standard-setting and implementation. Under § 108, 42 U.S.C. § 7408, the EPA identifies covered air pollutants and issues air quality criteria describing the scientific knowledge about their effects. Section 109, 42 U.S.C. § 7409, then directs the Administrator to establish national ambient air quality standards, usually abbreviated NAAQS. These standards describe permissible concentrations in the ambient air. Section 109(d)(1) calls for periodic review and appropriate revision. States implement the national standards through state implementation plans under § 110, subject to the Act's requirements and federal supervision. *Id.* at 462-63, 470, 476-78.

Section 109(b)(1) governs primary standards. It requires standards that, in the Administrator's judgment, based on the air quality criteria and allowing an adequate margin of safety, are requisite to protect public health. The statutory terms identify both the protected interest and the information on which the Administrator must act. Secondary standards under § 109(b)(2) protect public welfare against known or anticipated adverse effects associated with the pollutant's presence in the ambient air. Congress therefore separated the health and welfare objectives while using the same basic standard-setting structure. *Id.* at 465, 472-73.

On July 18, 1997, the EPA revised the national standards for ozone and particulate matter. The revisions appeared at 62 Fed. Reg. 38,652 and 38,856. The disputes concerned both the criteria used to select the standards and the legal consequences of adopting a revised ozone standard measured over eight hours rather than the previous one-hour period. The EPA maintained that it could set these national standards without considering the economic costs of implementing them. The challengers argued that the resulting restrictions could themselves harm public health through their economic effects and that the statute did not adequately specify how much protection was enough. *Id.* at 462-66, 475-76, 481-85.

The ozone implementation issue arose from two overlapping sets of provisions in Part D of Title I. Subpart 1 contains general requirements for areas that do not meet a national standard. Subpart 2 contains more specific requirements for ozone nonattainment areas, added in 1990 after dissatisfaction with the prior implementation regime. Subpart 2 classifies areas by pollution severity and attaches deadlines and control requirements to those classifications. Its classifications and dates were built around the older ozone standard. This created difficulties when the EPA adopted a new standard using a different averaging period. *Id.* at 476-78, 481-85.

In the preamble accompanying the revised ozone standard, the EPA announced its interpretation of how those subparts would interact. It proposed to use Subpart 1 for implementing the new standard and to retain Subpart 2 for the old standard only until an area attained that old standard. The effect would be to end Subpart 2's restrictions in such areas while implementation of the new standard proceeded under the more flexible general provisions. The Supreme Court treated that interpretation as an agency action separate from the selection of the numerical air quality standard itself. *Id.* at 478-85.

Procedural History

The challengers sought direct review in the United States Court of Appeals for the District of Columbia Circuit under § 307(b)(1) of the Clean Air Act, 42 U.S.C. § 7607(b)(1). This was judicial review of federal rulemaking, rather than an appeal from a district-court trial. The Court of Appeals' principal decision is reported at 175 F.3d 1027 (1999), with a further decision on rehearing at 195 F.3d 4 (1999). 531 U.S. at 462-64.

On nondelegation, the panel concluded that the EPA had interpreted § 109 to confer discretion without an intelligible principle. The panel did not simply invalidate the statutory provision. It remanded so the EPA could adopt a limiting construction that would constrain its own discretion. Judge Tatel dissented from that conclusion. This unusual remedy became a central issue in the Supreme Court: could an agency supply the policy limitation that Congress allegedly had failed to enact? *Id.* at 463, 472-74.

The Court of Appeals unanimously rejected the argument that the EPA should consider implementation costs in setting the standards. It also recognized the EPA's authority to revise the ozone standard but held that Subpart 2 restricted implementation of a revised standard. On rehearing, it rejected the EPA's contention that its implementation interpretation was not final agency action subject to review. The Supreme Court granted the EPA's petition and the challengers' cross-petition to address the statutory, constitutional, and reviewability questions. *Id.* at 463-64.

Issue

Does § 109(b) permit the EPA to consider the costs of implementing a national ambient air quality standard when deciding the level requisite to protect public health or welfare? If costs are excluded, does the statutory direction to protect public health with an adequate margin of safety supply an intelligible principle, or does it unconstitutionally transfer legislative power to the EPA? Can an agency cure an otherwise unconstitutional delegation by voluntarily restricting its own authority?

Separately, was the EPA's announced interpretation of the ozone implementation provisions sufficiently final and ripe for judicial review? If so, could the EPA implement the revised ozone standard under Subpart 1 in a manner that displaced the restrictions of Subpart 2?

Rule and Holding

Section 109(b) unambiguously excludes implementation costs from the considerations that determine national ambient air quality standards. The EPA must identify the concentration requisite to protect public health, with an adequate margin of safety, using the statutory air quality criteria. The Court also applied the cost exclusion to secondary standards. This holding concerns the setting of standards under § 109; it does not establish that costs are irrelevant throughout the Clean Air Act. 531 U.S. at 465-72.

Congress may confer decisionmaking authority if it supplies an intelligible principle directing its exercise. Section 109(b)(1) satisfies that requirement: the EPA must establish standards sufficient, but no more stringent than necessary, to protect public health with an adequate margin of safety. The Constitution does not require Congress to specify the exact numerical concentration or a mathematical formula for selecting it. An agency's voluntary self-limitation cannot cure a delegation that actually lacks a constitutionally adequate congressional standard. *Id.* at 472-76.

The EPA's ozone implementation interpretation was final agency action and ripe for review. Although the relationship between Subparts 1 and 2 contained ambiguities, the EPA could not reasonably interpret the Act to make the ozone-specific restrictions largely disappear through revision of the standard. Its announced construction was unlawful. The Court left the agency to formulate a permissible interpretation on remand. *Id.* at 477-86.

Judgment

The Supreme Court affirmed in part, reversed in part, and remanded. It rejected the nondelegation objection and affirmed the exclusion of costs from § 109 standard-setting. It upheld judicial review of the implementation interpretation but rejected that interpretation. The Court directed further proceedings in the Court of Appeals, including disposition of other preserved challenges to the standards. The decision therefore did not resolve every scientific or administrative-law objection to the 1997 rules. *Id.* at 475-76, 486.

Reasoning

The Court began with statutory meaning because the constitutional question depends on the authority Congress actually granted. Section 109(b)(1) directs the Administrator to determine what is requisite to protect public health on the basis of scientific air quality criteria and with an adequate margin of safety. In its ordinary setting, public health refers to the health effects of the pollutant in the ambient air. Nothing in this instruction tells the EPA to trade those health effects against the costs of reducing pollution. The Court therefore rejected an interpretation that would treat the statutory health standard as an instruction to conduct a general cost-benefit analysis. *Id.* at 464-66.

The challengers argued that implementation costs could themselves reduce public health. Expensive regulation might reduce economic activity and resources available for medical care or other health-producing activities. The Court did not resolve that empirical claim against them. It concluded that Congress had not assigned that balancing task to the EPA when setting § 109 standards. Reading all economic consequences into the phrase public health would transform the statutory decision rather than implement the particular health criterion Congress selected. *Id.* at 466-69.

The rest of the Act reinforced the exclusion. Congress expressly referred to costs and economic feasibility in other provisions, showing that it knew how to make those considerations relevant. Its repeated revision of the Clean Air Act without adding a comparable instruction to § 109 was also significant. The challengers could not obtain authority for an economically consequential change in the standard-setting process from general terms such as the Administrator's judgment, an adequate margin, or what is requisite. The Court's reference to Congress not hiding elephants in mouseholes describes this textual inference: a major alteration in a regulatory program ordinarily requires statutory language capable of carrying that meaning. *Id.* at 467-69.

The statutory duties of the scientific advisory committee did not change the result. Although the committee was to advise on possible adverse public-health, welfare, social, economic, or energy effects associated with strategies for attaining and maintaining the standards, this did not make those effects criteria for setting the standards themselves. Such information could assist implementation and other responsibilities under the Act. The Court distinguished the national level of protection from the selection and evaluation of methods used to reach that level. *Id.* at 469-71.

Constitutional avoidance supplied no basis to rewrite the statute. The challengers urged consideration of costs as a way to provide a limiting principle and avoid a nondelegation problem. Avoidance permits a court to choose an available interpretation that avoids serious constitutional difficulty; it does not authorize an interpretation inconsistent with clear statutory directions. The Court also observed that an agency's concealed reliance on costs would be a reason to challenge the resulting standard, rather than a reason to change the statute's meaning. *Id.* at 471-72 & n.4.

Turning to nondelegation, the Court located the restriction in Article I, § 1, which vests the legislative powers granted by the Constitution in Congress. It applied the established intelligible-principle test from *J. W. Hampton, Jr., & Co. v. United States*, 276 U.S. 394, 409 (1928). The inquiry asks whether Congress has supplied a governing principle for the official who exercises delegated authority. It does not ask whether the official must make judgments or choose among competing possibilities; some discretion is inherent in executing laws. 531 U.S. at 472, 475.

The Court rejected the Court of Appeals' proposed agency cure before evaluating the statute's sufficiency. An agency cannot repair Congress's failure to provide a standard by choosing how much discretion it will exercise. That choice would itself entail the very policy decision that the nondelegation doctrine reserves to Congress. The constitutional sufficiency of the grant is therefore independent of whether the agency happens to have acted cautiously in a particular rulemaking. The opinion distinguished situations in which a statute incorporates established legal meaning or Congress itself adopts previously developed standards; those are ways to identify a congressional limitation. They do not authorize an agency to manufacture one after an unconstitutional grant. *Id.* at 472-74.

Section 109 supplied an adequate principle because it identified the task, the relevant evidence, the protected interest, and the degree of protection to be achieved. The EPA was to regulate the identified pollutants by reference to air quality criteria and to set standards requisite to protect public health with an adequate margin of safety. Requisite means sufficient, but not more than necessary. That instruction limits the agency even

though it leaves scientific and policy judgments about the particular concentration needed to accomplish the prescribed objective. *Id.* at 473-76.

The Court compared the provision with earlier delegations it had upheld. In *Touby v. United States*, 500 U.S. 160 (1991), Congress permitted temporary scheduling of drugs to avoid an imminent hazard to public safety. Other decisions sustained broad directions framed in terms of the public interest, fair and equitable prices, or excessive profits. Section 109's health-protection instruction fell comfortably within that body of law. The two statutes invalidated on nondelegation grounds in 1935, in *Panama Refining Co. v. Ryan* and *A. L. A. Schechter Poultry Corp. v. United States*, involved materially different failures to confine the delegated authority. 531 U.S. at 474-75.

The degree of statutory guidance required may vary with the scope of the power conferred. A narrow administrative task may need relatively little direction; authority affecting the national economy demands meaningful statutory constraints. The breadth of the EPA's responsibility therefore mattered, but the Court concluded that Congress had supplied sufficient guidance even for this consequential task. It did not treat regulatory importance as a reason to require Congress to calculate the exact standard itself. *Id.* at 475-76.

The absence of a demonstrable threshold below which a pollutant causes no adverse health effects did not require a different conclusion. Selecting a protective level for a nonthreshold pollutant entails judgment about degrees of risk. The Court had never demanded that Congress provide a numerical answer to how much risk is excessive or a deterministic formula that eliminates the administrator's judgment. Congress's qualitative health standard was constitutionally sufficient. Whether the EPA adequately justified its particular choice remained a separate question under review of the agency action. *Id.* at 475-76.

The Court then addressed whether it could review the EPA's ozone implementation interpretation before states implemented the new standard. The interpretation appeared in the final rulemaking preamble, reflected the agency's considered conclusion after receiving comments, and determined which statutory regime it claimed would govern. The EPA could not defeat finality merely because it had announced an interpretation of implementation authority in connection with a standard-setting rule. The substance and legal consequences of its completed position controlled. *Id.* at 477-79.

The dispute was also ripe. Its resolution required statutory interpretation, and additional factual development would not clarify the legal relationship between Subparts 1 and 2. Waiting would impose practical planning burdens because states had to prepare implementation plans and would need to know the applicable legal requirements. The Court therefore saw no sufficient reason to postpone review of this settled agency position. Finality asked whether the agency had completed its decision; ripeness addressed the suitability and consequences of judicial review at that time. *Id.* at 479-80.

On the merits of implementation, the Court applied the then-governing *Chevron* framework. It found genuine difficulties in the statutory text. Subpart 2's classification system depended on one-hour measurements, whereas the new standard used eight-hour measurements. Some areas violating the new standard would not fit neatly into the old categories, and the deadlines referred to dates associated with the 1990 amendments. These problems left room for agency interpretation; the Court did not hold that the interaction of the subparts was wholly unambiguous. *Id.* at 481-84.

That interpretive room did not justify the EPA's proposed displacement of Subpart 2. Congress had added the ozone-specific provisions to constrain discretion and strengthen the implementation regime. Under the EPA's reading, revision of the ozone standard could remove those restrictions as areas attained the older standard, leaving the new standard to be implemented under the more permissive general regime. That would deprive Congress's detailed restrictions of their intended operation. The Court accordingly rejected the EPA's

construction while leaving it to the agency to reconcile the provisions through a reasonable alternative. *Id.* at 484-86.

Separate Opinions

Justice Thomas joined the Court's opinion but questioned whether the intelligible-principle test fully enforces Article I. A statute might contain an intelligible principle yet assign a decision so important that it must remain with Congress. The parties had not asked the Court to reconsider the precedents on that ground, and Thomas did not propose to decide that question in this case. His opinion expressed willingness to reconsider the doctrine in a suitable future case; it did not change the test applied by the Court or dissent from the judgment. *Id.* at 486-87 (Thomas, J., concurring).

Justice Stevens, joined by Justice Souter, agreed that § 109 was constitutional but rejected the Court's terminology about the nature of the delegated power. In his view, choosing generally applicable air quality standards was legislative activity in a meaningful sense. The better account was that the Constitution permits Congress to delegate such policymaking authority within adequate statutory limits. Congress had selected the goal and supplied an intelligible principle, making the delegation permissible. Stevens objected to describing all adequately constrained agency policymaking as necessarily nonlegislative merely to preserve an absolute verbal prohibition on delegating legislative power. *Id.* at 487-90 (Stevens, J., concurring in part and concurring in the judgment).

Stevens's position matters because he and the principal opinion agreed on the operative result while offering different constitutional explanations. The principal opinion treated an intelligible principle as the boundary between permissible executive discretion and impermissible transfer of legislative power. Stevens treated it as a condition for a permissible delegation of legislative power. Both approaches sustained this statute; neither adopted the more restrictive position Thomas was considering. *Id.* at 487-90.

Justice Breyer agreed that costs were excluded here but disagreed with the principal opinion's general approach to statutory silence. He would ordinarily be reluctant to read a regulatory statute to require an administrator to ignore serious adverse consequences of a regulation, including consequences produced by excessive costs. Such a presumption, however, could be overcome by the particular statute's structure, history, and purpose. The Clean Air Act supplied the necessary evidence. *Id.* at 490-93 (Breyer, J., concurring in part and concurring in the judgment).

Breyer emphasized Congress's technology-forcing objective. Congress sought to set health-based goals that might require development of pollution-control technology beyond what was presently available. Making national standards depend on existing technology or current cost predictions could frustrate that choice and encourage delay. The Act dealt with implementation difficulties in other provisions rather than by weakening the national health goal. On this statute, those features justified the exclusion of costs, even though Breyer would not infer the same exclusion as readily from regulatory language in general. *Id.* at 491-94.

Breyer also explained that a health-based standard need not require elimination of every conceivable risk. The EPA could use context and comparative health information when deciding what protection was requisite, and the statute need not be read to require economically catastrophic efforts to eliminate trivial residual risks. This was Breyer's explanation of the room available within a health-protection standard, rather than a holding that the EPA could conduct the cost-benefit balancing the Court had rejected. *Id.* at 494-96.

Notes

The decision separates statutory authority, constitutional delegation, and the legality of a particular agency decision. First identify the considerations Congress authorized. Then ask whether Congress supplied a constitutionally sufficient standard. Then ask whether the agency acted within that standard and adequately justified its action. The EPA prevailed on the constitutionality of § 109 while losing on its interpretation of ozone implementation. A valid delegation therefore supplies no automatic answer to a challenge to the agency's exercise of that authority. *Id.* at 472-76, 481-86.

The agency-self-limitation point connects directly to *Gundy*. In *Whitman*, an agency could not create a missing congressional standard. In *Gundy*, the plurality maintained that it was identifying a limitation already supplied by Congress through statutory text and context. Gorsuch's dissent disputed that reading. The operative question in comparing the cases is whether a limitation belongs to the statute as properly interpreted, or exists only because an agency or court adds it. Compare 531 U.S. at 472-74, with *Gundy*, Kagan plurality, slip op. at 9-15, and Gorsuch dissent, slip op. at 27-33.

Later development: *Loper Bright Enterprises v. Raimondo*, 603 U.S. 369 (2024), overruled *Chevron* and directed courts to exercise independent judgment on statutory meaning, while recognizing that statutes may themselves delegate discretion to agencies. The account of *Whitman*'s ozone analysis above describes the framework the Court actually used in 2001. *Loper Bright* expressly preserved ordinary statutory stare decisis for prior holdings that specific agency actions were lawful; a change in interpretive methodology does not itself establish that *Whitman*'s holdings were overruled. [*Loper Bright*, slip op. at 17-18, 34-35.](#)

The cost rule is specific to the statutory decision at issue. It should not be generalized into a prohibition on agencies considering costs, or into a constitutional requirement that Congress choose health protection over economic effects. Congress selected the criterion for these national standards; the Court enforced that statutory choice and held that the choice left constitutionally permissible discretion to the EPA. 531 U.S. at 465-76.

Gundy v. United States

Citation

Gundy v. United States, 588 U.S. 128 (2019). Supreme Court of the United States, argued October 2, 2018, decided June 20, 2019. Justice Kagan announced the judgment and wrote a plurality opinion joined by Justices Ginsburg, Breyer, and Sotomayor. Justice Alito concurred in the judgment only. Justice Gorsuch dissented, joined by Chief Justice Roberts and Justice Thomas. Justice Kavanaugh took no part. The judgment was 5-3, but Kagan's statutory interpretation and constitutional reasoning commanded four votes. [Full Supreme Court opinion, including the concurrence and dissent.](#)

The challenged provision is 34 U.S.C. § 20913(d), formerly codified at 42 U.S.C. § 16913(d). Pinpoint references below identify the separately numbered pages of each opinion in the Court's official slip opinion: Kagan's plurality, pages 1-18; Alito's concurrence, page 1; and Gorsuch's dissent, pages 1-33. The more detailed account of the criminal proceedings also uses the Second Circuit's published text of its 2017 summary order.

Parties

Herman Avery Gundy was the criminal defendant in the United States District Court for the Southern District of New York, the appellant in the Second Circuit, and the petitioner in the Supreme Court. The United States prosecuted him for failing to register under the Sex Offender Registration and Notification Act, commonly called SORNA, and defended his conviction. Gundy sought relief on the ground that Congress had unconstitutionally delegated legislative power to the Attorney General when it authorized him to specify SORNA's applicability to people convicted before the Act. Kagan plurality, slip op. at 3-4.

Material Facts

Congress enacted SORNA in 2006 to establish a more comprehensive and uniform national system of sex-offender registration. The statute built on existing state systems, which differed in their coverage and requirements. Its declaration of purpose, now 34 U.S.C. § 20901, identifies protection of the public through a comprehensive national registration system. Congress was particularly concerned that substantial numbers of people convicted of sex offenses were not included in functioning registration systems or could no longer be located through them. These were the legislative concerns described by the plurality, rather than findings about Gundy's individual conduct. Kagan plurality, slip op. at 1-3, 11-13.

Section 20913(a) requires an offender to register and keep the registration current in each jurisdiction where the person resides, works, or studies. The statutory definition of a sex offender includes an individual who was convicted of a covered sex offense. Other provisions specify registration information, periodic in-person reporting, and registration periods that range from fifteen years to life depending on the statutory category and other conditions. Failure to register can carry federal criminal consequences. Under the interstate-travel basis applicable to Gundy's prosecution, 18 U.S.C. § 2250(a) penalizes a person required to register who travels in interstate commerce and knowingly fails to register or update the registration; the maximum imprisonment is ten years. Kagan plurality, slip op. at 2-3.

Section 20913(b) specifies the ordinary time for initial registration: before completion of imprisonment for the offense giving rise to registration, or within three business days after sentencing when no imprisonment is imposed. Those directions pose an obvious temporal problem for an offender who completed the relevant sentence before Congress enacted SORNA. The challenged subsection, § 20913(d), authorizes the Attorney General to specify the applicability of the statutory requirements to offenders convicted before enactment or implementation in a particular jurisdiction, and to prescribe registration rules for those offenders and other

categories unable to comply with subsection (b). The dispute concerned how much authority the first part of that sentence confers. Kagan plurality, slip op. at 3, 6-15; Gorsuch dissent, slip op. at 2-3.

The Attorney General issued an interim rule in February 2007 specifying that SORNA applied to offenders convicted before its enactment. A final rule in December 2010 reiterated that coverage. Kagan emphasized that the rule imposing registration obligations on pre-Act offenders had remained in place. Gorsuch emphasized the breadth of the asserted authority and variations in implementation policies. The plurality responded that the state-compliance guidance on which part of the dissent relied was distinct from the individual registration duties supporting criminal liability. Kagan plurality, slip op. at 4, 14-15 & n.3; Gorsuch dissent, slip op. at 3-5.

Gundy had pleaded guilty in Maryland in 2005 to a sexual offense involving a minor. His conviction therefore preceded SORNA. During a later federal sentence associated with violation of supervised release, he was held in Pennsylvania. After he authorized arrangements for community-based custody, he traveled unescorted by commercial bus from Pennsylvania to a residential reentry center in the Bronx on July 17, 2012. He was released from federal custody to a private Bronx residence on August 27, 2012. He did not register in Maryland or New York and was prosecuted under § 2250(a). Kagan plurality, slip op. at 4; *United States v. Gundy*, 695 F. App'x 639, 640-41 (2d Cir. 2017) (summary order).

Procedural History

The district court initially dismissed the prosecution on the ground that a necessary trigger for Gundy's registration obligation was absent. In an earlier appeal, the Second Circuit reversed and reinstated the indictment, holding that he had been required to register under SORNA no later than August 1, 2008. That decision is reported at 804 F.3d 140 (2d Cir. 2015). These preliminary proceedings concerned the operation of the registration and prosecution provisions; the later Supreme Court proceeding focused on the constitutional delegation question. *Gundy*, 695 F. App'x at 640.

After reinstatement, Gundy argued that his travel while technically in federal custody did not satisfy the interstate-travel requirement. The district court rejected his proposed categorical exemption and conducted a bench trial on stipulated facts. It found the elements established beyond a reasonable doubt, including any voluntariness requirement that might apply, and entered a judgment on June 16, 2016, imposing time served and five years of supervised release. A stipulated-facts bench trial places the agreed facts before a judge for adjudication rather than a jury; it did not prevent Gundy from preserving his legal objections. *Id.* at 640-41.

The Second Circuit affirmed on June 22, 2017. It did not decide whether § 2250(a) implicitly requires voluntary interstate travel because the facts supported a finding of voluntariness even on Gundy's proposed reading. It also rejected his preserved nondelegation argument as foreclosed by circuit precedent. The Supreme Court granted review only of the nondelegation question concerning § 20913(d). It therefore did not reopen every issue concerning his interstate travel or the timing of his registration duty. *Id.* at 641 & n.2; Kagan plurality, slip op. at 4. [Second Circuit's 2017 summary order.](#)

Issue

Does Congress violate Article I's restriction on transferring legislative power when it authorizes the Attorney General to specify the applicability of SORNA's registration requirements to offenders convicted before the statute's enactment?

The constitutional issue turns first on statutory meaning. Does § 20913(d), read with the rest of SORNA, require application to all pre-Act offenders as soon as implementation is feasible, leaving the Attorney General transitional administrative decisions? Or does it leave the Attorney General to decide whether, when,

and to what extent those offenders will be subject to the federal requirements at all? The Justices also disagreed about whether the established intelligible-principle test adequately enforced the constitutional limit.

Rule and Holding

The Court rejected Gundy's nondelegation challenge and affirmed his conviction. The plurality applied the rule that a delegation is permissible when Congress supplies an intelligible principle, meaning a discernible policy and boundaries directing the official's exercise of authority. The scope of the delegation must be established through statutory interpretation before its constitutional sufficiency can be assessed. Kagan plurality, slip op. at 4-6, 15-18.

The plurality construed SORNA to require the Attorney General to apply the registration requirements to pre-Act offenders as soon as feasible. On that reading, Congress had resolved the coverage policy and left only administrative and transitional implementation problems to the Attorney General. That limited assignment satisfied the intelligible-principle test. The phrase as soon as feasible was the plurality's construction of the statutory scheme; it does not appear as an express command in § 20913(d). Kagan plurality, slip op. at 6-18.

Alito supplied the fifth vote because he could not conclude that the statute lacked an adequate discernible standard under the Court's existing approach. He did not join Kagan's interpretation or reasoning. Gorsuch, Roberts, and Thomas would have invalidated the delegation under a more demanding understanding of Article I. Accordingly, neither the plurality's entire analysis nor the dissent's proposed replacement test should be described as a five-Justice holding. Alito concurrence, slip op. at 1; Gorsuch dissent, slip op. at 1-2, 22-33.

Judgment

The Supreme Court affirmed the Second Circuit's judgment, leaving Gundy's conviction in place. Five participating Justices voted to affirm, three dissented, and Justice Kavanaugh did not participate. Kagan plurality, slip op. at 18; Alito concurrence, slip op. at 1.

Reasoning

Kagan began with the relationship between interpretation and nondelegation. A court cannot measure the adequacy of Congress's instructions until it identifies what authority the statute confers. Gundy's constitutional argument depended on a broad reading under which the Attorney General could register all pre-Act offenders, some of them, or none, for whatever reasons he chose. If Congress had already required eventual coverage and assigned only the resolution of practical transition problems, the constitutional question would be materially different. The plurality therefore addressed statutory meaning before judging the delegation. Kagan plurality, slip op. at 4-6.

The plurality treated *Reynolds v. United States*, 565 U.S. 432 (2012), as an important foundation. *Reynolds* held that SORNA's requirements did not apply to pre-Act offenders of their own force before the Attorney General acted. Kagan read that decision's explanation as recognizing a limited reason for the intervening administrative decision: immediate registration of the pre-Act population could pose practical difficulties. The need to newly register or reregister a large population, and the impossibility of complying with an already-passed release deadline, explained why Congress provided an implementation mechanism. Kagan plurality, slip op. at 6-9.

On Kagan's account, *Reynolds* did not give the Attorney General unlimited discretion to abandon coverage. It proceeded from the premise that Congress intended registration of pre-Act offenders, while allowing a period to resolve implementation problems. A statutory duty can therefore depend on an administrative determination without leaving the official free to reject the underlying policy. Kagan treated the earlier decision as supporting a limited implementation delay rather than a permanent option to exclude the entire pre-Act population. *Id.* at 7-10.

Gundy responded that a judicial account of Congress's motivations could not supply an intelligible principle Congress had failed to enact. The plurality agreed with the underlying rule from *Whitman* that a missing congressional standard cannot be supplied after the fact. It disagreed about what interpretation was doing here. In Kagan's view, the Court was identifying the standard that the enacted statute already contained when its provisions were read together. The dispute was consequently about the permissible evidence and method for identifying statutory meaning, as well as about constitutional doctrine. *Id.* at 9-11.

The declaration of purpose was one element of the plurality's construction. Congress announced a comprehensive national registration system to protect the public. Kagan reasoned that granting the Attorney General an unrestricted power to exempt the large existing population of pre-Act offenders would be inconsistent with that enacted objective. The purpose provision supplied context for the more specific authority to specify applicability; it supported reading that authority as a means of achieving comprehensive coverage. *Id.* at 11-12.

The statutory definition of a sex offender reinforced this conclusion. It refers to an individual who was convicted of a covered offense. The plurality read the past tense as evidence that Congress was addressing people with existing convictions, rather than designing a system only for people convicted after enactment. Legislative history describing the problem of previously convicted offenders missing from registration systems confirmed the importance of that population to Congress's plan. Kagan used these sources cumulatively to identify a coverage policy she believed Congress had already adopted. *Id.* at 12-13.

The text and title of § 20913(d) supplied the immediate administrative context. The subsection addresses initial registration of offenders unable to comply with subsection (b), whose deadlines were tied to sentencing or release. Many pre-Act offenders could not meet a deadline that had already passed. Reading the authority to specify applicability together with the authority to prescribe registration rules, Kagan concluded that Congress was enabling the Attorney General to solve that transition problem. The provision allowed sufficient time to make the existing statutory obligations workable for the pre-Act population. *Id.* at 13-15.

The plurality also emphasized the limits of the practical discretion it recognized. The Attorney General could consider administrative difficulties associated with bringing pre-Act offenders into the system. He could not indefinitely decline to require registration merely because he preferred another policy. Congress's comprehensive objective and inclusion of pre-Act offenders made the authority temporary. The Attorney General's broad application of the Act within months of enactment was consistent with that understanding, but the constitutional limitation depended on Kagan's reading of the statute, rather than on the official's willingness to exercise less power. *Id.* at 14-17.

Having construed the statute, the plurality found the constitutional analysis straightforward under existing precedent. The intelligible-principle test requires Congress to state the general policy and limits of the official's authority. It had sustained delegations framed in broad terms, including the health-protection instruction in *Whitman*. An instruction to apply an already specified registration system to a defined population as soon as administratively feasible was narrower than many assignments previously upheld. The

Attorney General was implementing Congress's policy within a statutory framework that already supplied the substantive registration requirements. *Id.* at 15-17.

Kagan rejected the suggestion that a feasibility judgment is inherently legislative in a constitutionally forbidden sense. Congress frequently directs officials to carry out programs while allowing them to account for practical constraints. Such judgments can be necessary to implementation because Congress cannot anticipate every operational problem or prescribe every detail. The plurality regarded the transition into SORNA as an example of that ordinary administrative function. *Id.* at 17-18.

The plurality's closing discussion defended the established doctrine more broadly. Congress relies on officials to exercise discretion under general statutory instructions; a constitutional rule forbidding that arrangement would threaten a substantial range of federal administration. That observation explained Kagan's resistance to the dissent's approach, but it did not establish that every delegation is valid. Her conclusion remained tied to the limiting construction she had given SORNA and the precedents governing that construction. *Id.* at 17-18.

Separate Opinions

Justice Alito's one-page concurrence preserved the outcome under existing doctrine while expressly questioning that doctrine's future. He agreed that Article I does not permit Congress to transfer its legislative powers to another branch. He nevertheless observed that, since 1935, the Court had repeatedly sustained very broad delegations under capacious statutory standards. He would support reconsideration if a majority were prepared to undertake it. In the absence of such a majority, he considered it inappropriate to single out this statute for invalidation under a newly demanding approach. Alito concurrence, slip op. at 1.

Alito's vote therefore supports the judgment upholding the challenged provision under the established approach. It does not convert every proposition in Kagan's opinion into the reasoning of the Court, and it does not adopt Gorsuch's constitutional test. His expressed openness to a future reconsideration also was not a vote to invalidate SORNA in the case before him. The distinction between joining an opinion and concurring only in its judgment is essential to reading this decision. *Id.*

Justice Gorsuch, joined by Chief Justice Roberts and Justice Thomas, objected first to the location and consequences of the power Congress had conferred. On his reading, Congress had left the nation's chief prosecutor free to decide whether a large existing population would face registration duties backed by federal criminal penalties. The problem was not eliminated because that population consisted of people previously convicted of serious crimes. The constitutional allocation of lawmaking authority protects the procedures by which restrictions on everyone's liberty are established. Gorsuch dissent, slip op. at 1-9.

Gorsuch connected nondelegation to the enactment process. Article I vests federal legislative power in Congress, and bicameralism and presentment make binding legislation depend on agreement among differently constituted institutions. Those requirements promote deliberation, compromise, accountability, and protection against concentrated power. Allowing Congress to leave consequential rules of private conduct to an executive officer can evade those constraints and obscure political responsibility: legislators can claim credit for a broad aspiration while blaming the administrator for the burdens imposed. The judiciary must enforce the allocation even when the political branches welcome the arrangement. *Id.* at 5-10.

The dissent identified three categories of constitutionally permissible assignments. Congress may authorize another branch to fill in details after Congress has made the governing policy choices. Congress may make the operation of its rule contingent on facts an executive official must determine. Congress may also assign responsibilities that are nonlegislative, including matters within authority that the Constitution independently

gives another branch. These categories permit substantial administrative work and consequential decisions, while reserving the governing rules for private conduct to Congress. *Id.* at 10-12.

Gorsuch illustrated detail-filling through *Wayman v. Southard*, where Congress prescribed the use of state procedural rules while allowing federal courts limited alterations and additions. He illustrated conditional legislation through statutes making an embargo or authorization depend on an executive finding of specified facts. The distinction concerned who supplied the operative policy. An official could find whether the statutory condition existed or work out how to execute a settled policy without deciding the basic rule Congress should have enacted. *Id.* at 10-12.

The dissent then criticized the development of the intelligible-principle formula. Gorsuch understood *J. W. Hampton* as permitting a constrained implementation assignment rather than announcing a license to transfer major policymaking choices whenever a broad aspiration could be identified. He argued that later decisions detached the phrase from its historical foundation and used increasingly general purposes to sustain expansive delegations. A sound inquiry, in his view, should ask whether Congress made the important policy judgments, specified the relevant facts or criteria, and left officials an implementing responsibility. *Id.* at 13-20.

Gorsuch did not maintain that enforcing his approach required elimination of administrative government or automatic invalidation of every earlier delegation. Some precedents could be understood as involving factual determinations, implementation details, or independent executive authority. He also identified the major-questions and vagueness doctrines as related means by which courts had policed transfers of policymaking responsibility. Those discussions were part of his proposed constitutional account, rather than holdings of the Court in *Gundy*. *Id.* at 18-22, 26-27.

Applying that approach, Gorsuch concluded that SORNA fit none of the permissible categories. Deciding which pre-Act offenders would face federal registration obligations was a central coverage choice, not merely the completion of administrative details. Congress had not made application turn on a specified executive factual finding. And determining the domestic criminally enforceable obligations of this population was not an exercise of independent presidential or prosecutorial authority. Prosecutorial discretion in enforcing an enacted law did not authorize the Attorney General to determine the underlying legal duties Congress had left open. *Id.* at 22-27.

Gorsuch separately attacked the plurality's narrowing construction. Section 20913(d) does not contain a feasibility command, even though Congress knew how to write such a standard. A broad declaration that Congress was establishing a comprehensive system did not itself direct the Attorney General to cover every pre-Act offender as soon as feasible. Comprehensive can describe substantial coverage without universal coverage, and SORNA itself contains limits and exceptions. In his view, an enacted purpose could not replace the specific allocation of discretion in the provision governing the disputed population. *Id.* at 27-30.

The definition of a sex offender did not answer the coverage question either. A person can fall within a statute's defined category while a separate provision determines which duties apply to that person. Similarly, Gorsuch read the two clauses of § 20913(d) as conferring different powers: one to specify applicability and another to prescribe registration rules. The second did not silently confine the first to implementation delay. Legislative history could not supply a limitation absent from the enacted text. *Id.* at 30-32.

Finally, the dissent disputed Kagan's use of *Reynolds*. That case established the need for action by the Attorney General before SORNA applied to pre-Act offenders; it did not decide the present nondelegation challenge or bindingly impose the feasibility limitation on which the plurality relied. Gorsuch would have confronted the breadth of the delegation directly and held it unconstitutional. Even a feasibility formulation,

he added, would require examination of whether it actually constrained policy choices and supplied a judicially enforceable standard. *Id.* at 27-28, 32-33.

Notes

The disagreement operates at two levels. Kagan and Gorsuch differed over what Congress enacted, and they differed over how strictly the Constitution limits the discretion Congress may confer. A reader should keep those questions separate. Under Kagan's construction, the Attorney General implements a coverage decision Congress already made. Under Gorsuch's construction, the Attorney General makes that coverage decision. The same statutory words therefore produce different constitutional problems depending on the interpretation accepted. Kagan plurality, slip op. at 6-18; Gorsuch dissent, slip op. at 22-33.

The case also requires care about the effect of a prior conviction. Gundy's pre-2006 conviction placed him in the category affected by the challenged delegation; the federal charge concerned a later failure to register following interstate travel. The Supreme Court granted review of the delegation question. It did not decide every possible constitutional challenge to registration, or hold that every form of custodial interstate travel satisfies § 2250(a). Kagan plurality, slip op. at 3-4; 695 F. App'x at 640-41.

For comparison with *Whitman*, identify the source of the alleged limiting principle. The EPA's promise to restrain itself would not cure an unconstitutional statute. Kagan claimed that the whole of SORNA supplied a statutory limitation; Gorsuch thought the plurality had supplied a limitation Congress omitted. The point is not merely whether a useful standard can be formulated, but whether that standard can legitimately be attributed to Congress. *Whitman*, 531 U.S. at 472-74; Kagan plurality, slip op. at 9-15; Gorsuch dissent, slip op. at 27-33.

Later development: in *FCC v. Consumers' Research*, decided June 27, 2025, the Court applied the intelligible-principle framework and upheld the statutory delegation underlying the federal universal-service funding system. Kagan wrote for six Justices, including Chief Justice Roberts and Justices Kavanaugh and Barrett; Gorsuch dissented with Thomas and Alito. The Court also rejected the challenge to the private administrator's role. This later decision is important when evaluating predictions made after *Gundy*: Alito's concurrence and Kavanaugh's nonparticipation did not themselves establish that the Court would replace the existing test. [*FCC v. Consumers' Research*, Nos. 24-354 and 24-422, slip op. at 1-2, 10-12 \(2025\)](#).

Immigration and Naturalization Service v. Chadha

Citation

Immigration and Naturalization Service v. Chadha, 462 U.S. 919 (1983). Supreme Court of the United States, argued February 22, 1982, reargued December 7, 1982, decided June 23, 1983. Chief Justice Burger wrote the opinion of the Court, joined by Justices Brennan, Marshall, Blackmun, Stevens, and O'Connor. Justice Powell concurred in the judgment on a narrower ground. Justice White dissented. Justice Rehnquist filed a separate dissent, joined by White, addressing severability. The result was 7-2; Burger's full reasoning had six votes. The INS's appeal, No. 80-1832, was considered with the House's and Senate's petitions, Nos. 80-2170 and 80-2171. [Full judicial opinion, including all separate opinions.](#)

The case concerns a one-House legislative veto of an executive decision suspending an individual's deportation. Statutory section numbers and descriptions of the immigration procedure below refer to the provisions before the Court in 1983. Pinpoint references use the published U.S. Reports pagination.

Parties

Jagdish Rai Chadha was the person subject to deportation, the petitioner for review in the Ninth Circuit, and an appellee or respondent in the Supreme Court proceedings. He challenged the constitutionality of the House resolution that overturned the suspension of his deportation and sought to prevent the INS from deporting him on that basis. 462 U.S. at 923-29.

The Immigration and Naturalization Service administered the immigration statute on behalf of the Attorney General. Although the INS was the appellant in the principal Supreme Court case, it agreed with Chadha that the legislative veto was unconstitutional. It nevertheless had entered and would enforce the deportation order unless a court prevented it. The House of Representatives and the Senate defended the statutory veto mechanism; they participated in the appellate litigation and separately sought Supreme Court review. This alignment matters to both the procedural history and the Court's analysis of a genuine case or controversy. *Id.* at 928-31, 939-40.

Material Facts

Chadha was of East Indian origin, was born in Kenya, and held a British passport. He lawfully entered the United States in 1966 on a nonimmigrant student visa. His authorized stay expired on June 30, 1972, but he remained. On October 11, 1973, the INS ordered him to show cause why he should not be deported for overstaying. At a January 11, 1974, hearing, he conceded deportability and sought suspension of deportation under § 244(a)(1) of the Immigration and Nationality Act, then codified at 8 U.S.C. § 1254(a)(1). *Id.* at 923-24.

Section 244(a)(1) authorized the Attorney General, in his discretion, to suspend deportation of an otherwise deportable person who satisfied specified conditions. The person had to have been continuously physically present in the United States for at least seven years, establish good moral character during the relevant period, and show that deportation would result in extreme hardship to that person or to a spouse, parent, or child who was a United States citizen or lawful permanent resident. Satisfying the statutory eligibility criteria permitted the exercise of discretion; it did not by itself compel relief. *Id.* at 924-25 & n.1.

After proceedings resumed on February 7, 1974, an Immigration Judge considered Chadha's application, including evidence bearing on his character and hardship. On June 25, 1974, the judge ordered his deportation suspended. Section 244(c)(1) required the Attorney General to report each suspension to Congress, including the pertinent facts, law, and reasons. The suspension was therefore part of a statutory

process that included a period for congressional review before cancellation of the deportation proceedings and adjustment of status. *Id.* at 924-26.

Section 244(c)(2) provided the challenged veto. During the congressional session when a suspension was reported, or before the close of the next session, either the House or the Senate could adopt a resolution stating that it did not favor the suspension. If either chamber did so, the Attorney General had to deport the person or permit voluntary departure under the deportation order. If neither chamber acted within the prescribed period, the Attorney General was to cancel the deportation proceedings. The suspension was thus not yet a completed grant of permanent resident status when Congress considered Chadha's case. *Id.* at 925-26.

The suspension remained outstanding for approximately a year and a half. Congress's opportunity to veto it ended with the close of the first session of the 94th Congress on December 19, 1975. On December 12, Representative Eilberg, chair of the relevant House Judiciary subcommittee, introduced House Resolution 926, opposing permanent residence for six named individuals, including Chadha. The committee had reviewed 340 suspension cases and concluded that these six did not satisfy the statutory requirements, particularly the hardship requirement. *Id.* at 926-27.

On December 16, 1975, the resolution was discharged from further committee consideration and brought before the House. It had not been printed or made available to other members before or at the vote. The record disclosed no floor debate or recorded vote. The House adopted it on the basis of the committee's recommendation. The resolution was not submitted to the Senate and was not presented to the President. Those omissions were consistent with the statute's one-House procedure and became the basis of the constitutional challenge. *Id.* at 926-28.

The House resolution changed the agency's course. The Immigration Judge reopened the proceeding to implement it, although Chadha objected that § 244(c)(2) was unconstitutional. The judge concluded that he lacked authority to invalidate an act of Congress and ordered Chadha deported on November 8, 1976. The constitutional dispute thus arose from an operative deportation order against an identified individual, rather than from an abstract disagreement between Congress and the Executive. *Id.* at 928.

Procedural History

Chadha appealed the deportation order to the Board of Immigration Appeals and renewed his constitutional challenge. The Board dismissed the appeal because it likewise considered itself without power to declare an act of Congress unconstitutional. Chadha then petitioned the United States Court of Appeals for the Ninth Circuit under § 106(a) of the Act, 8 U.S.C. § 1105a(a), which provided for review of final deportation orders. There was no intervening federal district-court merits judgment. *Id.* at 928.

Before the Ninth Circuit, the INS agreed that the one-House veto was unconstitutional. The court invited the House and Senate to submit briefs as amici curiae, meaning participants assisting the court without initially occupying the same position as ordinary parties. The Ninth Circuit held that the House lacked constitutional authority to require Chadha's deportation through this mechanism. It directed the Attorney General to refrain from deporting Chadha on the basis of the House resolution. Its decision is reported at 634 F.2d 408 (9th Cir. 1980). *Id.* at 928-29.

The INS appealed to the Supreme Court under 28 U.S.C. § 1252, the then-applicable provision allowing appeals in specified cases holding a federal statute unconstitutional. Both chambers disputed whether the INS could appeal after prevailing on its legal argument. The House and Senate also sought review through their own petitions for certiorari. The Court granted those petitions, postponed consideration of jurisdiction over

INS v. Chadha (continued)

the INS appeal, heard argument and reargument, and ultimately held that the cases were properly before it. *Id.* at 928-31, 943-44.

Before reaching the merits, the Court addressed appellate jurisdiction, severability, Chadha's standing, possible alternative immigration relief, the Ninth Circuit's jurisdiction over the constitutional challenge, Article III adverseness, and the political-question objection. These threshold matters occupied a substantial portion of the opinion because the INS agreed with Chadha on the constitutional issue while remaining the agency responsible for executing the challenged order. *Id.* at 929-44.

Issue

May Congress authorize either chamber, acting alone and without presenting its action to the President, to overturn the Attorney General's suspension of an individual's deportation and thereby require deportation? Is the House's action legislative in character, so that Article I requires passage by both chambers and presentment, or may it operate as a reserved condition on the authority Congress previously delegated?

If the veto mechanism is unconstitutional, can it be severed from the suspension authority, leaving the Attorney General's statutory power and the rest of the process in operation? Do the parties' alignment and the availability of other possible immigration relief prevent the courts from deciding the constitutional question?

Rule and Holding

When Congress takes action that is legislative in purpose and effect, it must follow Article I's requirements of bicameral passage and presentment to the President, unless the Constitution itself authorizes a different procedure. The House's resolution was legislative because it changed the legal rights, duties, and relations of Chadha and executive officials outside the Legislative Branch. An ordinary statute cannot authorize a chamber to bypass the constitutional procedure for that later action. 462 U.S. at 944-59.

Section 244(c)(2)'s one-House veto was therefore unconstitutional. Congress could alter or revoke the authority it had delegated, but it had to do so through constitutionally prescribed legislative action. The Court severed the veto mechanism from the remaining suspension provisions, relying on the Act's severability clause, statutory history, and the continuing workability of the remaining scheme. *Id.* at 931-35, 954-59.

The Court also held that judicial review was available. Chadha faced a concrete injury redressable by invalidating the veto; possible alternative relief was speculative; the final deportation order depended on the veto's validity; and the INS would enforce the order absent judicial relief. Congress's substantial authority over immigration did not make the constitutionality of its chosen procedure a political question beyond judicial review. *Id.* at 929-44.

Judgment

The Supreme Court affirmed the Ninth Circuit. The one-House veto was invalid and severable, so the order preventing deportation on the basis of the House resolution remained effective. The decision preserved the statutory suspension mechanism without the unconstitutional veto. It did not itself naturalize Chadha or adjudicate every possible independent basis for immigration action against him. *Id.* at 934-35, 959.

Reasoning

The Court first explained why the INS could appeal despite agreeing with Chadha's constitutional argument. The statutory requirements of § 1252 were satisfied: a federal court had held an act of Congress unconstitutional in a civil proceeding to which a federal agency was a party. The INS was also sufficiently aggrieved by the judgment because the judgment prevented it from carrying out a deportation order it otherwise would execute. Its legal agreement with the Ninth Circuit did not erase the coercive effect of the court's order on the agency. *Id.* at 929-31.

Severability was closely connected to whether Chadha could obtain effective relief. If invalidation of the veto also destroyed the Attorney General's suspension authority, his constitutional victory might not produce the relief he sought. Section 406 of the Act expressly provided that invalidity of a particular provision would not affect the remainder. The Court treated that clause as creating a presumption that Congress did not intend the whole scheme to depend on the veto's validity. The relevant question was whether Congress would have wanted the valid remainder to operate without the invalid provision. *Id.* at 931-34.

The legislative history did not overcome that presumption. Congress had turned to administrative suspension after experiencing the burden of providing individualized immigration relief through private bills. Although Congress also wanted oversight, the Court found insufficient evidence that it would have chosen to resume the full burden of private legislation rather than allow suspension without a one-House veto. The scheme remained workable: the Attorney General could decide suspension applications, report grants to Congress, and cancel proceedings after the statutory waiting period absent constitutionally enacted legislation to the contrary. Reporting and the opportunity for ordinary legislation preserved a form of congressional oversight. *Id.* at 932-35.

Chadha had standing because the deportation order threatened a concrete injury and a favorable decision would remove the House resolution as the basis for it. The fact that his position also benefited the Executive in an institutional dispute did not make his personal injury less real. An individual may challenge a structural constitutional violation when that violation produces a judicially redressable injury to the individual. The Court did not require the constitutional rule to protect only Chadha's private interests. *Id.* at 935-36.

The possibility of alternative immigration relief did not justify refusing to decide the case. Chadha had married a United States citizen in August 1980, and the Refugee Act of 1980 potentially supplied another avenue. But neither possibility established that he would receive relief. A person facing deportation could not be denied review of the procedure producing the order on speculation that another application might eventually succeed. The Court treated these arguments as reasons urged for avoiding the constitutional question, and rejected them on the actual uncertainty of the proposed alternatives. *Id.* at 936-37.

The Ninth Circuit's statutory jurisdiction extended to this constitutional issue even though the House's vote occurred outside the administrative hearing. The final order was entered to implement that vote; the validity of the final order therefore depended on the validity of the veto. The grant of review over final deportation orders encompassed matters on which those orders depended, rather than only questions the agency itself was competent to decide during the hearing. Chadha directly attacked the order and sought relief inconsistent with its execution. *Id.* at 937-39.

The dispute also satisfied Article III's case-or-controversy requirement. The INS would deport Chadha if the challenged provision were upheld and would refrain if the judgment invalidating it stood. That gave the court's decision concrete consequences notwithstanding the parties' agreement on legal doctrine. Congress's participation supplied an active defense of the statute and removed any concern that the constitutional issue

lacked adversarial presentation. The Court distinguished the existence of a real controversy from the separate practical interest in hearing fully developed arguments on both sides. *Id.* at 939-40.

The political-question objection failed because Congress's substantive authority over immigration did not resolve the constitutionality of the means it used. Article I supplied judicially manageable standards for evaluating enactment procedures. Accepting the claim that Congress's power over a subject made every constitutional challenge to its legislation nonjusticiable would largely eliminate judicial review of federal statutes. The Court therefore examined the method by which the House exercised power while leaving Congress's broad substantive immigration authority intact. *Id.* at 940-44.

On the merits, the Court began with Article I, § 1 and § 7. Legislative power is vested in a Congress consisting of a House and Senate. Bills must pass both chambers and be presented to the President, subject to the Constitution's provisions governing approval, veto, and override. Section 7, clause 3 extends the presentment requirement to qualifying orders, resolutions, and votes, preventing Congress from evading it merely by changing the name of its action. Calling the measure a resolution therefore did not answer the constitutional question. *Id.* at 944-46.

The Court explained the purposes of presentment and bicameralism through the constitutional design. Presentment allows the President to protect the Executive from legislative encroachment and supplies an additional check against improvident or oppressive measures. Bicameralism requires concurrence by legislative bodies with different representative structures, encouraging deliberation and preventing one chamber from exercising the entire legislative power. Those requirements protect individual liberty by dispersing authority. The Court treated the prescribed procedure as binding even when a simpler arrangement would be efficient or attractive to the political branches. *Id.* at 946-51.

The House resolution fell within those requirements because of its legal operation. It overruled the Attorney General's suspension decision and imposed an obligation to deport Chadha. It thereby altered the legal rights, duties, and relations of people and officials outside the Legislative Branch. Its individual focus did not prevent it from being legislative for this purpose. The relevant inquiry examined the authority asserted and the change the House purported to accomplish, rather than whether the measure had the appearance of a generally applicable statute. *Id.* at 951-54.

The action it replaced confirmed its legislative character. Without the statutory veto provision, Congress could seek to require a different outcome, if constitutionally permissible, only through legislation. A repeal or amendment of an existing statutory authorization must follow Article I just as an original enactment must. The original passage of § 244 did not supply advance compliance for every later congressional decision taken under it. Congress's choice to delegate discretion and its later choice to override the resulting decision were distinct exercises of power, each requiring the constitutional procedure applicable to that exercise. *Id.* at 953-55.

The Court also explained why this conclusion did not subject every executive implementation decision to bicameralism and presentment. The Attorney General acted under a law already enacted through Article I and remained confined by its substantive limits. Administrative action could be reviewed for conformity with that law. Congress, by contrast, was seeking to exercise its own power to alter the result without passing a new law. Once Congress delegated the suspension authority, it had to respect that allocation until it legislatively altered or revoked it. *Id.* at 953-55 & n.16.

Express constitutional exceptions reinforced the rule. The Court identified the House's impeachment power, the Senate's impeachment-trial power, and the Senate's advice-and-consent roles concerning appointments and treaties as instances in which the Constitution specifically authorizes one chamber to act in a legally

consequential manner outside ordinary legislation. Those defined exceptions did not include a one-House veto of deportation suspensions. The Court did not hold that every internal congressional action requires presentment; its analysis concerned the external legal effect of the resolution before it. *Id.* at 955-56 & nn.20-21.

The broad historical use of legislative vetoes did not save the device. Congress and Presidents had incorporated them into many administrative arrangements, often as a practical compromise accompanying delegation. But institutional acceptance and administrative convenience could not amend the Constitution's prescribed lawmaking process. The Court concluded that the burdens of bicameralism and presentment were part of the chosen structure of government, including when their observance made oversight less convenient. *Id.* at 944-45, 958-59.

Separate Opinions

Justice Powell agreed that the House's action was unconstitutional but would have decided the case on a narrower ground. The majority's reasoning threatened legislative veto provisions across many fields and forms. Powell considered it unnecessary to reach that broad question because this particular veto represented Congress's assumption of a function ordinarily assigned to courts or administrative tribunals: deciding whether identified individuals satisfied existing legal criteria. *Id.* at 959-64 (Powell, J., concurring in the judgment).

Powell focused on the House's stated reason for acting. The committee concluded that Chadha and five other people did not meet the existing statutory hardship requirements. The House thus reviewed the application of established law to particular people. Whether characterized as an original adjudication or appellate review of the agency's decision, the action resembled adjudication rather than the prescription of a new general rule. Powell regarded that exercise of power as an improper legislative intrusion into an adjudicative function. *Id.* at 963-66.

The procedure exposed the individuals to precisely the danger the separation of powers was intended to prevent. The House did not provide the ordinary protections associated with adjudication, including a hearing, representation, and decision by an impartial tribunal subject to established rules. Political accountability offers greater protection when Congress makes general policy than when a shifting legislative majority disposes of the rights of a few identified people. Powell connected this concern to the broader principle reflected in the Bill of Attainder Clause, while grounding his conclusion in separation of powers rather than treating the resolution as a separately established bill-of-attainder violation. *Id.* at 960-67.

The majority disputed Powell's characterization and relied instead on Article I's legislative procedure. In particular, it noted difficulties with describing the House as exercising appellate judicial review when the favorable suspension decision had no ordinary aggrieved party seeking judicial reversal. Powell answered that the relevant point was the nature and danger of the function the House assumed, whether or not this particular administrative grant would otherwise have been appealed. His rationale therefore should be distinguished from the Court's binding bicameralism-and-presentment rationale. *Id.* at 957 n.22, 965-66 & n.8.

Justice White defended the legislative veto as an important accommodation between broad administrative delegation and congressional responsibility. Congress could not realistically enact every administrative detail itself, but it might be unwilling to transfer wide discretion without retaining a means to review its exercise. The veto often formed part of the bargain under which Congress granted authority the Executive wanted. Eliminating that mechanism could make delegation harder or leave agencies with discretion Congress had

intended to retain power to check. White regarded those institutional consequences as relevant to the constitutional analysis. *Id.* at 967-74 (White, J., dissenting).

White criticized the majority's broad definition of legislative action. Agency rules and adjudications also change legal rights and obligations, often with major practical consequences, yet they need not themselves pass both chambers and receive the President's signature. Existing doctrine permitted those acts because Congress had enacted a statute authorizing them. White reasoned that the same initial enactment could authorize a retained legislative check within the scope of the delegation. He found it difficult to justify allowing agencies extensive legally binding discretion while prohibiting Congress from reserving a limited power to prevent its exercise. *Id.* at 984-90.

White also identified a different baseline for deciding whether the veto changed the legal status quo. Under the complete statute, the Attorney General's suspension was conditional. A permanent change in Chadha's status required executive approval of suspension and the absence of an objection from either chamber during the review period. In that arrangement, White saw functional agreement among the Executive, House, and Senate before the change became final. A veto preserved the original deportable status, much as failure of a private relief bill would do. *Id.* at 990-98.

This argument directly contested the majority's account of the legal effect of the House vote. The majority treated the House as reversing an executive decision made under a valid statutory delegation, an alteration requiring legislation. White treated the veto as the exercise of a condition built into the original grant, which had itself been enacted through Article I. He considered the statute's combination of executive action and legislative nonobjection consistent with the distribution of authority that bicameralism and presentment protect. The majority required compliance with the specified constitutional procedure rather than this asserted functional equivalent. *Id.* at 952-55, 990-98.

White further resisted the idea that the device necessarily aggrandized Congress at the Executive's expense. Congress had used the veto as a reservation accompanying authority it otherwise might not grant, and the check could operate within the limits of that grant. He favored examination of the particular arrangement's operation and effects on the branches over a categorical rule invalidating the wider class of legislative vetoes. His opinion included an extensive appendix describing statutory uses of the device, illustrating his concern about the sweep of the decision. *Id.* at 974-84, 998-1013.

Justice Rehnquist, joined by White, dissented on severability. He accepted that a severability clause creates a presumption, but considered Congress's actual design decisive. Congress had repeatedly refused to give the Executive unconditional authority to grant this form of relief. The veto was an integral limitation on the suspension power, and removing it expanded that power beyond what Congress had agreed to enact. A general severability clause did not conclusively establish that Congress would have wanted this particular delegation to operate without its accompanying check. *Id.* at 1013-16 (Rehnquist, J., dissenting).

Rehnquist accordingly would have reversed rather than preserved the suspension authority through severance. His objection exposes the practical importance of the remedy: invalidating the veto while retaining the delegation leaves the Executive with broader freedom from congressional control than the enacted arrangement provided; invalidating the connected authorization can eliminate the relief Congress made available. The majority and Rehnquist disagreed about which result Congress would have preferred if the veto proved unconstitutional. White also endorsed this severability objection, in addition to his disagreement on the merits. *Id.* at 1012-16.

Notes

The sequence of these cases illuminates two different constitutional limits. *Whitman* and *Gundy* concern what choices Congress may assign to an administrator and how clearly Congress must constrain them. *Chadha* concerns how Congress may intervene after granting authority. A delegation's validity does not establish that Congress may retain a one-House mechanism for changing the resulting legal outcomes. The source of the administrator's power and the procedure for later congressional action must each be examined. *Whitman*, 531 U.S. at 472-76; *Gundy*, Kagan plurality, slip op. at 4-6; *Chadha*, 462 U.S. at 953-56.

The actual holding invalidated a one-House resolution with binding legal consequences outside Congress. The majority's reasoning also explains why adding a second chamber, while still omitting presentment, would not satisfy Article I for legislative action. Conversely, a chamber's expression of disagreement without binding external legal effect does not become the same device simply because it criticizes an agency decision. The relevant questions are what the action legally does and what constitutional procedure governs that exercise of power. 462 U.S. at 945-46, 952-56 & nn.20-21.

Severability must be analyzed separately from the constitutional merits. The Court's conclusion that the veto violated Article I did not itself answer whether the suspension authority survived. The majority relied on the express clause, congressional objectives, and the ability of the remainder to function. Rehnquist relied on the centrality of the veto to Congress's willingness to delegate. The constitutional defect and the legislative-intent inquiry led to distinct questions about the proper judgment and Chadha's practical relief. *Id.* at 931-35, 1013-16.

The different opinions also locate the protection of liberty in different institutional features. Burger emphasized compliance with the Constitution's lawmaking procedure. Powell emphasized impartial adjudication of individual rights. White emphasized preservation of a workable balance between delegation and congressional control. These are the competing explanations actually advanced in the case. Powell agreed with the result on his narrower ground, while White would have upheld the veto and also opposed its severance. *Id.* at 946-59, 959-74, 984-1016.